

3.

| CASE #      | CASE NAME                    | HEARING NAME                                                                                                 |
|-------------|------------------------------|--------------------------------------------------------------------------------------------------------------|
| CVME2508525 | DOE A.G. VS COUNTY OF ORANGE | MOTION TO QUASH PLAINTIFF'S DOCUMENT SUBPOENA TO THE CUSTODIAN OF RECORDS FOR THE DISTRICT ATTORNEY'S OFFICE |

**Tentative Ruling:** See above.

4.

| CASE #      | CASE NAME          | HEARING NAME                         |
|-------------|--------------------|--------------------------------------|
| CVSW2108099 | PELAYO VS STIRLING | MOTION FOR JUDGMENT ON THE PLEADINGS |

**Tentative Ruling:** DENY

Plaintiff Letitia Pelayo acquired ownership of the residential property located at 45251 La Cruz Drive, Temecula, CA in March 2021. The property is in the De Luz Ranchos Association. The Association has governing documents including CC&Rs which ban nuisances and Rules & Regulations that expressly ban short-term rentals (less than 30 days). When Pelayo moved into the residence, the closest home to her property was owned by Heather Stirling and is located at 44240 La Cruz Drive, Temecula. After this action was filed Stirling transferred the property to Santos Ranch Holdings LLC.

Plaintiff alleges that Defendants Dawn & Luciano Santos have been operating a short-term rental out of the Stirling property that Plaintiff characterizes as a "party house." Pelayo complained directly to Defendant Dawn Santos and then to the Association, but this did not abate the nuisance activity. Pelayo then hired counsel who sent a cease-and-desist letter and a Request for Resolution under Civil Code §§5930, 5935, and 5940, which is required before commencing an action concerning a common interest development. Receiving no response, Pelayo filed the instant lawsuit on September 22, 2021.

On December 9, 2021, Defendants Dawn Santos and Luc Santos filed a cross-complaint alleging various causes of action, including various citations to the Penal Code. The cross-complaint alleges claims of stalking, extortion, vexatious litigant, and filing false and misleading claims. The cross-complaint seeks an award of damages totaling \$1,460,000 and to have Pelayo incarcerated and deported.

On February 2, 2022, Pelayo filed a Special Motion to Strike the cross-complaint under CCP §425.16. On March 8, 2022, the anti-SLAPP motion was granted as to the entirety of the cross-complaint on the basis that the gravamen of the claims made therein arise from Pelayo's constitutionally protected activity.

Defendants and Cross-Complainants filed a First Amended Cross-Complaint (FACC) on March 12, 2024, alleging twelve (12) causes of action.

Cross-Defendant Dawn Santos brings the instant motion for judgment on the pleadings against Cross-Complainant Leticia Pelayo "because the Cross-Complaint fails to state sufficient facts to constitute a cause of action as a matter of law." (Motion p.4:6-7.) Santos

contends the entire dispute underlying this case has “been completely extinguished” because Cross-Complainant previously executed a binding and valid settlement agreement with the HOA. Santos asserts the global settlement agreement included a full release of claims and Civil Code §1542 waiver. Santos argues the claims in the Cross-Complaint are mooted by the section 1542 waiver. The motion purports to include the section 1542 waiver as Exhibit A, but no document is attached. Santos filed a request for judicial notice asking the court to take judicial notice of the section 1542 waiver.

Plaintiff Pelayo opposes the motion. Pelayo explains at a Mandatory Settlement Conference in 2022, parties De Luz Ranchos HOA and its management company, Ralston Management Company, entered into a confidential settlement agreement with Santos to settle her claims against them. Pelayo was not a party to that settlement agreement. Pelayo contends this settlement agreement is the basis for Santos’ motion.

The very basis of the motion is improper. Cross-Complainant Santos moves for judgment on the pleadings of *her own pleading* – the Cross-Complaint. If Santos wishes to dismiss her Cross-Complaint, she can do so. A motion for judgment on the pleadings is unnecessary and improper.

It is possible Santos has simply confused the pleadings at issue. However, even if Santos is challenging Pelayo’s pleading, there is no basis for the motion. Santos has not demonstrated that the allegations in any pleading are insufficient to state a cause of action. Santos’ motion relies on a settlement agreement between Santos, De Luz Rancho Association, and Ralston Management. First, Pelayo is not a party to that agreement, so it has no bearing on Pelayo’s claims. Second, the copy of the settlement agreement Santos provided only includes signatures from Santos and Santos Ranch. It is not clear that this is, in fact, a valid and binding agreement between any parties based on the record before the court.

5.

| CASE #      | CASE NAME        | HEARING NAME            |
|-------------|------------------|-------------------------|
| CVSW2308832 | HAIRE VS BARRAZA | DEMURRER ON CVME2406197 |

**Tentative Ruling:** OVERRULE the general demurrer to the 1st and 2nd causes of action. (C.C.P., § 430.10(e).)

SUSTAIN the misjoinder demurrer without further leave to amend. (C.C.P., § 430.10(d).

Plaintiffs allege that on 12/14/22, Plaintiff Andrew Lee Haire was driving westbound on Bryant Street, with Plaintiffs Emily Haire and Samuel Haire, when he entered the intersection of Palomar Street and he was struck by a vehicle driven by non-party Miguel Barraza. Defendants are the owners of properties located on Bryant Street, and Plaintiffs allege that the negligently maintained Bryan Street with overgrown vegetation such that it constituted a dangerous condition as it obstructed the view of Barraza. Plaintiffs filed this action on 12/13/24 and filed the operative Second Amended Complaint (SAC) on 12/29/25. The SAC asserts: (1) negligence; (2) negligence; and (3) loss of consortium.

Defendants Laurie Haven as Trustee of the Amended and Restated Judyth Marshel Trust and Amended and Restated Judyth Marshel Trust now demur to the 1<sup>st</sup> and 3<sup>rd</sup> cause so faction on the ground each fails to state facts sufficiently to constitute a claim. (C.C.P., §